

3.

CASE #	CASE NAME	HEARING NAME
CVRI2503627	MARTINEZ VS FORD MOTOR COMPANY	MOTION TO COMPEL FURTHER RESPONSES TO REQUEST FOR PRODUCTION SET ONE

CASE #	CASE NAME	HEARING NAME
CVRI2503627	MARTINEZ VS FORD MOTOR COMPANY	MOTION TO COMPEL FURTHER RESPONSE TO SPECIAL INTERROGATORIES

Tentative Ruling:

Moving party: Plaintiff Reyna Martinez; represented by Knight Law Group, LLP

Responding party: Defendant Ford Motor Company and Sunrise Ford Fontana (Erroneously Sued as Knight Sunrise Fontana LLC); represented by Narain Maclear LLP

Plaintiff Reyna Martinez brings this Song-Beverly action concerning a 2022 Ford F-150 with a transmission defect. The complaint, filed 6/26/25, asserts: (1) breach of express warranty; (2) Civ. Code §1793.2; (3) fraudulent inducement-concealment; and (4) negligent repair.

Plaintiff moves to compel further responses to requests for production, set one (“RFPs”), nos. 16-24, 30, 37, 39, 41, 49-51, 79, 81, 83, 85, 87, 89, 91, 93, and 96-97. Plaintiff seeks \$3,470 in sanctions against Defendant Ford Motor Company and its counsel. Plaintiff also moves to compel further responses to special interrogatories, set one (“SROGs”), nos. 6, 15-17, 27-28, 91-92, 100, and 102, and seeks \$3,337 in sanctions.

Defendant opposes both motions. It argues that it provided code-compliant responses, produced or agreed to produce responsive documents, and its objections were proper. It contends that rather than discussing about the supplemental responses, Plaintiff filed this motion without further meet and confer.

Plaintiff replies that Defendant’s later production does not cure its deficient responses, that Defendant failed to participate meaningfully in the meet-and-confer process, and that Defendant has not substantiated its objections.

Analysis

A party may file a motion compelling further responses to interrogatories or inspection demands if it finds that the response is inadequate, incomplete, or evasive, or an objection in the response is without merit or too general. (CCP §§ 2030.300(a), 2031.310(a).) Unless notice of the motion is given within 45 days of the service of the verified response, or any supplemental response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing, the propounding party waives any right to compel a further response. (*Id.* at §§ 2030.300(c), 2031.310(c).)

Here, the motions are timely. Defendant served verified responses by 4/15/26, and the parties extended the motion deadline to 6/18/26. (Sapra Decl., ¶¶ 5- 6.) Plaintiff filed the motions by that date.

The motions must include declarations showing a reasonable and good faith effort to resolve each issue informally. (*Id.*, §§ 2016.040, 2030.300(b)(1), 2031.310(b)(2).) A single letter followed by a refusal may sometimes satisfy the meet-and-confer requirement. (*Obregon v. Superior Court* (1998) 67 Cal.App.4th 424, 432.) However, the court will also consider the time available before the motion deadline, the extent to which the responding party was complicit in the lapse of time, and the prospects of success through meet and confer. (*Id.* at 432-433.) A good faith meet and confer attempt requires more than just an attempt to persuade the objector of the error of his or her ways, it requires counsel to talk the matter over, compare their views, consult, and deliberate. (*Clemente v. Alegre* (2009) 177 Cal.App.4th 1277, 1294.) It requires a serious attempt by the moving party to informally resolve each issue with the responses. (*Id.* at 1293.) Arguments and debates does not constitute an earnest attempt to resolve discovery disputes. (*In re Marriage of Moore* (2024) 102 Cal.App.5th 1275, 1293.) The parties must present the merits of the respective positions, and “[o]nly after all the cards have been laid on the table, and a party has meaningfully assessed the relative strengths and weaknesses of its position in light of all available information, can there be a ‘sincere’ effort to resolve the matter.” (*Id.* at 1293 [internal quotation marks omitted].)

Here, Plaintiff sent one meet and confer letter on 5/28/26. (Sapra Decl., ¶ 6, Ex. E.) Defendant agreed to extend the motion deadline, but did not provide substantive response before Plaintiff filed the motions on 6/18/26. (*Id.*, ¶¶ 7-9.) The parties then executed a stipulated protective order on 6/16/26. (Eberle Decl., ¶ 9.) Defendant also made additional productions on 7/31/26 and 8/21/26. (*Id.*, ¶¶ 9-10.) The record here does not show that counsel meaningfully discussed each disputed request, either after entry of the protective order, or the supplemental productions. (See Sapra Decl., ¶¶ 6-9; Eberle Decl., ¶¶ 9-10.)

The court therefore order the parties to meet and confer in ***person, on the telephone or videoconferencing*** within 10 days of this order. If disputes remain, the parties will file a joint separate statement of outstanding issues and identify the documents already produced. The joint separate statement is due 10 court days before the next hearing. Defer the requests for sanctions.

Hearing on the motion is continued to 11/5/2026 at 8:30 a.m. in Dept. 6.